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7 IN THE SUPERIOR COURT OF THE STATE OF WASHINGTON
8 COUNTY OF PIERCE COUNTY

9 RYAN ROCHA, NICOLE BEDNARCZYK, and
10 CATHERINE SELIN, individually and on behalf
11 of all others similarly situated,

12 Plaintiffs,

13 v.

14 KING COUNTY, a municipal corporation,

15 Defendant.
16

NO.

CLASS ACTION COMPLAINT

17 **I. INTRODUCTION**

18 1.1 Jury service is one of the most significant forms of citizen participation in a free
19 society. The jury system allows randomly selected people to dispense social justice unfiltered
20 by elections, politicians, bureaucrats, or lobbyists. Jurors guard against governmental abuses
21 of power and hold the most powerful interests in society accountable to the rule of law.

22 Jurors are a fundamental component of American democracy.

23 1.2 Numerous civil and criminal jury trials occur daily in both the superior and
24 district courts of King County. King County requires residents to appear as potential jurors for
25 these civil and criminal trials, and the failure to appear or otherwise respond can result in a
26 finding of contempt or criminal sanctions.

1 1.3 The length of jury service in King County can range from one day to several
2 months.

3 1.4 King County pays individuals who perform jury service only for expenses at the
4 rate of \$10 per day plus mileage or travel fare. King County does not pay individuals for the
5 time they spend performing jury service.

6 1.5 Diversity in the jury venire is necessary to a properly functioning jury system.
7 When the jury is drawn from a fair cross-section of the community, the quality and
8 impartiality of the jury's decision making is improved, and the jury's political legitimacy as a
9 democratically inclusive institution is enhanced.

10 1.6 It is the policy of the state of Washington to maximize the availability of
11 residents for jury service and to minimize the burden on prospective jurors, their families, and
12 their employers resulting from jury service.

13 1.7 Washington law prohibits exclusion from jury service on account of race, color,
14 religion, sex, national origin, or economic status.

15 1.8 Washington law also prohibits discrimination in or restricted access to any
16 place of public accommodation on the basis of race or color. The courts of King County are
17 places of public accommodation within the meaning of Washington law, and performing jury
18 service is a right, advantage, and privilege that all eligible residents are entitled to enjoy
19 within those places.

20 1.9 King County is violating Washington law in the operation of its jury system.
21 Specifically, King County's failure to pay individuals for time spent performing jury service has
22 a disparate impact on low-income people and people of color, preventing them from jury
23 participation. This form of institutional exclusion and discrimination violates state law and has
24 a pernicious effect on the judicial system and American democracy.

25 1.10 Plaintiffs Ryan Rocha and Nicole Bednarczyk are individuals of low economic
26 status who work for employers that do not compensate employees for jury service. Plaintiff

1 Rocha is also Black, and issues of income inequality and financial instability disproportionately
2 affect King County's communities of color. Plaintiffs Rocha and Bednarczyk are eligible and
3 eager to serve as jurors in the courts of King County but cannot afford to forgo the income
4 they would lose while doing so. If King County summoned them to perform jury service today,
5 Plaintiffs Rocha and Bednarczyk would be forced to request financial hardship exemptions
6 despite their desire to participate in the judicial process. Indeed, King County has previously
7 excused Plaintiff Bednarczyk from serving as a juror on the basis of financial hardship.
8 Because King County refuses to pay individuals for time spent performing jury service, Plaintiff
9 Rocha, Plaintiff Bednarczyk, and others are being excluded on the basis of economic status,
10 race, and color.

11 1.11 Proper compensation is necessary to ensure that all qualified members of the
12 citizenry have an opportunity to participate in jury service. It is also required by the
13 Washington Minimum Wage Act (MWA), which establishes the "minimum standards of
14 employment" in the state. RCW 49.46.005. Jurors are "employees" within the meaning of the
15 MWA. Thus, jurors are entitled to be compensated for their service at no less than the
16 applicable minimum wage rate.

17 1.12 In the fall of 2015, Plaintiff Catherine Selin performed eleven days of jury
18 service. At the time, Plaintiff Selin was not working for an employer that compensated
19 employees for jury service. By failing to pay her and others like her for time spent performing
20 jury service, King County has violated the MWA.

21 1.13 Plaintiffs bring this action on their own behalf and on behalf of similarly
22 situated individuals. Plaintiffs respectfully ask the Court to declare that King County's policy
23 and practice of failing to adequately compensate jurors has a disparate impact on the basis of
24 economic status, race, and color; results in exclusion from jury service on the basis of
25 economic status, race, and color; and violates both RCW 2.36.080(3) and RCW 49.60.030(1).
26 Plaintiffs also ask the Court to declare that King County is violating the provisions of the MWA

1 by failing to pay the applicable minimum wage rate to individuals who perform jury service.
2 Plaintiffs respectfully seek a permanent injunction requiring King County to adequately
3 compensate individuals who perform jury service in the courts of King County and are not
4 otherwise compensated for that service by an employer. Plaintiff Selin also seeks an award of
5 damages for those who have performed jury service during the past three years but were not
6 compensated by an employer for that service.

7 **II. JURISDICTION AND VENUE**

8 2.1 Jurisdiction. The Court has jurisdiction over this action under Article IV, Section
9 6 of the Washington State Constitution and RCW 2.08.010 because this is a case in equity. The
10 Court also has jurisdiction over this action under Article IV, Section 6 of the Washington State
11 Constitution and RCW 2.08.010 because exclusive jurisdiction over this matter has not been
12 vested in some other court. The Court also has jurisdiction over this action under the Uniform
13 Declaratory Judgments Act, chapter 7.24 RCW. See RCW 7.24.010.

14 2.2 Lack of CAFA Jurisdiction. King County is a citizen of the state of Washington
15 for diversity purposes. *Illinois v City of Milwaukee, Wis.*, 406 U.S. 91, 98 (1972). Two-thirds or
16 more of the proposed members of each Class are also citizens of the state of Washington.
17 Thus, federal jurisdiction is inappropriate under the Class Action Fairness Act. See 28 U.S.C.
18 § 1332(d)(4)(B).

19 2.3 Governing Law. Washington law governs all causes of action asserted in this
20 complaint.

21 2.4 Venue. Venue is proper in this Court under RCW 36.01.050(1) because Pierce
22 County is one of the two judicial districts nearest King County.

23 **III. PARTIES**

24 3.1 Plaintiff Ryan Rocha. Plaintiff Ryan Rocha is a resident of King County and is
25 eligible to serve as a juror in the courts of King County. Plaintiff Rocha's household income in
26 each of the past three years (2012 to 2015) fell within the bottom two quintiles as measured

1 by the United States Census Bureau. Plaintiff Rocha does not work for an employer that
2 compensates employees for jury service. Plaintiff Rocha is a mixed-race individual; one of his
3 parents is Black, and the other is white.

4 3.2 Plaintiff Nicole Bednarczyk. Plaintiff Nicole Bednarczyk is a resident of King
5 County and is eligible to serve as a juror in the courts of King County. Plaintiff Bednarczyk's
6 household income in each of the past three years (2012 to 2015) fell within the bottom two
7 quintiles as measured by the United States Census Bureau. Plaintiff Bednarczyk does not work
8 for an employer that compensates employees for jury service. In 2012 Plaintiff Bednarczyk
9 was summoned to serve on a King County jury and received an economic hardship exemption.

10 3.3 Plaintiff Catherine Selin. Plaintiff Catherine Selin is a resident of King County
11 and performed jury service in King County Superior Court in 2015. Plaintiff Selin remains
12 eligible to serve as a juror in the courts of King County. Plaintiff Selin does not work for an
13 employer that compensates employees for jury service.

14 3.4 Defendant King County. Defendant King County is a municipal corporation
15 located in the state of Washington.

16 **IV. CLASS ACTION ALLEGATIONS**

17 4.1 Class Definitions. Plaintiffs seek certification of the following defined Classes:

18 4.1.1 Economic Disparity Class. Plaintiffs Rocha and Bednarczyk bring this
19 action pursuant to Civil Rule 23(a) and (b)(2) on behalf of themselves and all others similarly
20 situated as members of the following proposed class (the Economic Disparity Class):

21 All individuals who fall within the bottom two household
22 income quintiles as measured by the United States Census
23 Bureau, are eligible to perform jury service in the courts of
24 King County, Washington, and do not work for an employer
that compensates employees for jury service.

25 4.1.2 Black and African-American Racial Disparity Class. Plaintiff Rocha brings
26 this action pursuant to Civil Rule 23(a) and (b)(2) on behalf of himself and all others similarly

1 situated as members of the following proposed class (the Black and African-American Racial
2 Disparity Class):

3 All individuals who are Black or African-American, are eligible
4 to perform jury service in the courts of King County,
5 Washington, and do not work for an employer that
6 compensates employees for jury service.

7 4.1.3 Future Service Class. Plaintiffs Rocha, Bednarczyk, and Selin bring this
8 action pursuant to Civil Rule 23(a) and (b)(2) on behalf of themselves and all others similarly
9 situated as members of the following proposed class (the Future Service Class):

10 All individuals who are eligible to perform jury service in the
11 courts of King County, Washington and do not work for an
12 employer that compensates employees for jury service.

13 4.1.4 Past Service Class. Plaintiff Selin brings this action pursuant to Civil Rule
14 23(a) and (b)(3) on behalf of herself and all others similarly situated as members of the
15 following proposed class (the Past Service Class):

16 All individuals who, at any time from August 8, 2013 to the
17 present, performed jury service in the courts of King County,
18 Washington but did not receive at least the minimum wage
19 rate from an employer for each hour spent in such service.

20 4.1.5 Exclusions. Excluded from the Classes are the judge to whom this case
21 is assigned and any member of the judge's immediate family.

22 4.2 Numerosity. Each Class is so numerous that joinder of all members is
23 impracticable.

24 4.2.1 Economic Disparity Class. In 2014, the highest household income in the
25 second quintile was \$41,186, as measured nationally by the United States Census Bureau.
26 Carmen DeNavas-Walt & Bernadette D. Proctor, *Income and Poverty in the United States:*
2014 8 (U.S. Census Bureau Sept. 2015). According to Census Bureau estimates for the same
year, more than 180,000 households in King County had incomes of less than \$41,186. The
federal poverty guideline in 2014 was \$11,670 for an individual and \$23,850 for a family of

1 four. According to Census Bureau estimates for the same year, more than 290,000 King
2 County residents had an income that fell below 125 percent of the federal poverty level,
3 which qualifies the individual as indigent under GR 34. More than 78 percent of King County's
4 population is of voting age, and the vast majority of individuals within that group speak
5 English and are citizens of the United States. Thus, it is likely that tens of thousands (if not
6 hundreds of thousands) of individuals fall within the Economic Disparity Class.

7 4.2.2 Black and African-American Racial Disparity Class. According to Census
8 Bureau estimates for 2014, more than 120,000 King County residents were classified as Black
9 or African American. Another 110,000 were classified as being of two or more races. *Id.*
10 Thus, it is likely that tens of thousands of individuals fall within the Black and African-
11 American Racial Disparity Class.

12 4.2.3 Future Service Class. According to Census Bureau estimates for 2014,
13 more than 1,500,000 King County residents were age 18 or older. Thus, it is likely that
14 hundreds of thousands (if not more than a million) individuals fall within the Future Service
15 Class.

16 4.2.4 Past Service Class. Each year more than 30,000 King County residents
17 perform jury service in the courts of King County. *See*
18 www.kingcounty.gov/courts/SuperiorCourt/JuryServiceInKC.aspx (last visited July 9, 2016). It
19 has been estimated that fifteen percent of those residents are not compensated for jury
20 service by an employer. *See* Wash. State Jury Comm'n, *Report to the Board for Judicial*
21 *Administration* (WSJC Report), at 24 (2000) (citing David C. Brody, et al., *Juror Survey Results,*
22 *1998-1999*, at 9)). Thus, it is likely that thousands of individuals fall within the Past Service
23 Class.

24 4.3 Commonality. There are questions of fact and law common to each Class.

25 4.3.1 Economic Disparity Class. The questions of fact and law common to all
26 members of the Economic Disparity Class include but are not limited to the following:

- 1 a. Whether King County has a systemic policy or practice of failing to
2 compensate individuals for time spent performing jury service;
3 b. Whether King County's systemic policy or practice of failing to
4 compensate individuals for time spent performing jury service has
5 caused, and will continue to cause, citizens to be excluded from jury
6 service on account of economic status, including individuals who fall
7 within the bottom two household income quintiles as measured by
8 the United States Census Bureau and are not compensated for that
9 service by an employer;
10 c. Whether there exists an implied cause of action under RCW
11 2.36.080(3) for individuals who are eligible to perform jury service
12 but are excluded from doing so on account of their economic status;
13 d. Whether members of the Economic Disparity Class are entitled to an
14 order declaring that King County is causing them to be excluded
15 from jury service on account of economic status and, absent
16 injunctive relief, will continue to do so;
17 e. Whether members of the Economic Disparity Class are entitled to an
18 order requiring King County to adequately compensate individuals
19 who perform jury service in the courts of King County and are not
20 compensated for that service by an employer; and
21 f. What minimum amount of compensation is required to cure
22 exclusion on the basis of economic status.

23 4.3.2 Black and African-American Racial Disparity Class. The questions of fact
24 and law common to all members of the Black and African-American Racial Disparity Class
25 include but are not limited to the following:
26

- a. Whether King County has a systemic policy or practice of failing to compensate individuals for time spent performing jury service;
- b. Whether King County's systemic policy or practice of failing to compensate individuals for time spent performing jury service has caused, and will continue to cause, citizens to be excluded from jury service on account of race or color, including individuals who are Black or African-American and who do not work for an employer that compensates employees for jury service;
- c. Whether there exists an implied cause of action under RCW 2.36.080(3) for individuals who are eligible to perform jury service but are excluded from doing so on account of their race or color;
- d. Whether the courts of King County are places of public resort, accommodation, assemblage, or amusement for purposes of chapter 49.60 RCW;
- e. Whether jury service is a right, advantage, or privilege;
- f. Whether King County's systemic policy or practice of failing to compensate individuals for time spent performing jury service has a disparate impact on Blacks and African-Americans who do not work for an employer that compensates employees for jury service, one that has prevented (and will continue to prevent) them from fully enjoying the rights, advantages, and privileges of performing jury service in the courts of King County;
- g. Whether members of the Black and African-American Racial Disparity Class are entitled to an order declaring that King County is causing them to be discriminated against and excluded from jury

1 service on account of race or color and, absent injunctive relief, will
2 continue to do so;

- 3 h. Whether members of the Black and African-American Racial
4 Disparity Class are entitled to an order requiring King County to
5 adequately compensate individuals who perform jury service in the
6 courts of King County and are not compensated for that service by
7 an employer; and
8 i. What minimum amount of compensation is required to cure
9 exclusion and discrimination on the basis of race or color.

10 4.3.3 Future Service Class. The questions of fact and law common to all
11 members of the Future Service Class include but are not limited to the following:

- 12 a. Whether King County employs individuals who perform jury service
13 for purposes of the MWA;
14 b. Whether King County employs individuals who perform jury service
15 in Seattle for purposes of section 14.19.010 of the Seattle Municipal
16 Code (SMC);
17 c. Whether King County has a systemic policy or practice of failing to
18 compensate individuals for time spent performing jury service;
19 d. Whether King County's systemic policy or practice of failing to
20 compensate individuals who perform jury service has violated, and
21 will continue to violate, RCW 49.46.020;
22 e. Whether King County's systemic policy or practice of failing to
23 compensate individuals who perform jury service in Seattle has
24 violated, and will continue to violate, SMC 14.19.030;
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26

- 1 f. Whether members of the Future Service Class are entitled to an
2 order declaring that King County is violating provisions of the MWA
3 and SMC and, absent injunctive relief, will continue to do so; and
4 g. Whether members of the Future Service Class are entitled to an
5 order requiring King County to pay the applicable minimum wage to
6 individuals who perform jury service in the courts of King County
7 and are not compensated for that service by an employer.

8 4.3.4 Past Service Class. The questions of fact and law common to all
9 members of the Past Service Class, include but are not limited to the following:

- 10 a. Whether, for purposes of the MWA, King County employed the
11 members of the Past Service Class when they performed jury
12 service;
13 b. Whether, for purposes of the SMC, King County employed the
14 members of the Past Service Class when they performed jury
15 service;
16 c. Whether King County had a systemic policy or practice of failing to
17 pay the applicable minimum wage rate to members of the Past
18 Service Class when they performed jury service;
19 d. Whether King County acted willfully when failing to pay the
20 applicable minimum wage rate to members of the Past Service Class
21 when they performed jury service;
22 e. Whether King County failed to keep true and accurate records for all
23 hours worked by the members of the Past Service class in the course
24 of jury service;
25 f. Whether King County violated RCW 49.46.020 as to the members of
26 the Past Service Class;

- g. Whether King County violated RCW 49.46.120 by violating SMC 14.19.030 as to the members of the Past Service Class;
- h. Whether King County violated RCW 49.48.010 as to the members of the Past Service Class;
- i. Whether King County violated RCW 49.52.050 as to the members of the Past Service Class;
- j. Whether King County violated RCW 49.46.040(3) as to the members of the Past Service Class;
- k. Whether King County violated WAC 296-128-010 as to the members of the Past Service Class; and
- l. The nature and extent of injury to the members of the Past Service Class and the measure of compensation for such injury.

4.4 Typicality. Plaintiffs' claims are typical of the claims of the members of each respective Class Plaintiffs seek to represent.

4.4.1 Economic Disparity Class. The claims of Plaintiff Rocha, Plaintiff Bednarczyk, and the members of the Economic Disparity Class all arise out of the same common courses of conduct by King County and are based on the same legal and remedial theories.

4.4.2 Black and African-American Racial Disparity Class. The claims of Plaintiff Rocha and the members of the Black and African-American Racial Disparity Class all arise out of the same common courses of conduct by King County and are based on the same legal and remedial theories.

4.4.3 Future Service Class. The claims of Plaintiff Rocha, Plaintiff Bednarczyk, Plaintiff Selin, and the members of the Future Service Class all arise out of the same common courses of conduct by King County and are based on the same legal and remedial theories.

1 4.4.4 Past Service Class. The claims of Plaintiff Selin and the members of the
2 Past Service Class all arise out of the same common courses of conduct by King County and
3 are based on the same legal and remedial theories.

4 4.5 Adequacy of Representation. Plaintiffs will fairly and adequately protect the
5 interests of the members of each respective Class they seek to represent. Plaintiffs have
6 retained competent and capable attorneys who are experienced trial lawyers with significant
7 experience in wage and hour cases, discrimination cases, and class action litigation. Plaintiffs
8 and their counsel are committed to prosecuting this action vigorously on behalf of the Classes,
9 and Plaintiffs' counsel have the financial resources to do so. Neither Plaintiffs nor their
10 counsel have interests that are contrary to or that conflict with those of the proposed Classes.

11 4.6 Appropriateness of Declaratory and Injunctive Relief. King County is acting or
12 refusing to act on grounds generally applicable to the Economic Disparity Class, the Black and
13 African-American Racial Disparity Class, and the Future Service Class, making declaratory relief
14 and final injunctive relief appropriate with respect to each such Class as a whole.

15 4.7 Predominance. King County has engaged in a common course of unlawful and
16 wrongful conduct toward Plaintiff Selin and members of the Past Service Class. The common
17 issues that arise from this conduct and affect Plaintiff Selin and members of the Past Service
18 Class predominate over any individual issues. Adjudication of these common issues in a single
19 action has important and desirable advantages of judicial economy.

20 4.8 Superiority. Plaintiff Selin and members of the Past Service Class have suffered
21 harm and damages as a result of King County's unlawful and wrongful conduct. Absent a class
22 action, however, most members of the Past Service Class would find the cost of litigating the
23 claims prohibitive. Class treatment is superior to multiple individual suits or piecemeal
24 litigation because it conserves judicial resources, promotes consistency and efficiency of
25 adjudication, provides a forum for small claimants, and deters illegal activities. Plaintiff Selin
26 and her counsel are unaware of any litigation that has already been commenced in

1 Washington concerning King County’s unlawful and wrongful conduct. Litigation of the claims
2 should occur in this Court as all claims are brought under Washington law. There will be no
3 significant difficulty in the management of this case as a class action. Potential members of
4 the Past Service Class should be identifiable from King County’s records.

5 V. FACTS ENTITLING PLAINTIFFS TO RELIEF

6 A. The jury system is a pillar of our democracy, and participation by all segments of 7 society is necessary to the system’s functioning and legitimacy.

8 5.1 “We have juries for many reasons, not the least of which is that it is a ground
9 level exercise of democratic values.” *State v. Saintcalle*, 178 Wn.2d 34, 49, 309 P.3d 326
10 (2013). “The government does not get to decide who goes to the lockup or even the gallows.
11 Ordinary citizens exercise that right as a matter of democracy.” *Id.*

12 5.2 “Jury participation is critically important to the functioning and legitimacy of
13 our government. The use of juries validates the justice system through community
14 participation, provides a check against governmental abuses of power, educates citizens and
15 promotes civic engagement, and promotes integration and mutual understanding across
16 social groups.” *Id.* at 101 (Gonzalez, J., concurring).

17 5.3 Aside from voting, jury service is the “most significant opportunity” citizens
18 have “to participate in the democratic process.” *Powers v. Ohio*, 499 U.S. 400, 407 (1991).

19 5.4 Most King County residents who participate in jury service “report gaining a
20 greater understanding of our legal system and a greater respect for the democratic institution
21 that is trial by jury of one’s peers.” *See*
22 www.kingcounty.gov/courts/SuperiorCourt/JuryServiceInKC.aspx (last visited July 9, 2016).

23 5.5 Researchers have concluded that “jury service often makes citizens more
24 supportive of not only the jury system, but also of local judges and even the Supreme Court.”
25 John Gastil et al., *THE JURY AND DEMOCRACY: HOW JURY DELIBERATION PROMOTES CIVIC ENGAGEMENT AND*
26 *POLITICAL PARTICIPATION* 10 (Oxford Univ. Press 2010).

1 5.6 Researchers have also concluded that jury service can have a significant impact
2 on an individual's broader civic participation. For example, "deliberating on a jury causes
3 previously infrequent voters to become more likely to vote in future elections." *Id.* at 9.

4 5.7 "During jury deliberations, jurors may 'rely on their personal life experience to
5 evaluate the evidence presented at trial.'" *Long v. Brusco Tug & Barge, Inc.* 185 Wn.2d 127,
6 135, 368 P.3d 478 (2016) (quoting *Breckenridge v. Valley Gen. Hosp.*, 150 Wn. 2d 197, 199 n.3,
7 75 P.3d 944 (2003)).

8 5.8 "[T]here is a constitutional value in having diverse juries, quite apart from the
9 values enshrined in the Fourteenth Amendment." *Saintcalle*, 178 Wn.2d at 50. Studies have
10 shown "that compared to diverse juries, all-white juries tend to spend less time deliberating,
11 make more errors, and consider fewer perspectives." *Id.* at 50 (citing Equal Justice Initiative,
12 *Illegal Racial Discrimination in Jury Selection: A Continuing Legacy*, at 40-41 (August 2010)).
13 "In contrast, diverse juries [are] significantly more able to assess reliability and credibility,
14 avoid presumptions of guilt, and fairly judge a criminally accused." *Id.* Simply put, "more
15 diverse juries result in fairer trials." *Id.*; see also Kevin R. Johnson & Luis Fuentes-Rohwer, A
16 *Principled Approach to the Quest for Racial Diversity on the Judiciary*, 10 Mich. J. Race & L. 5,
17 36 (2004) ("racially mixed juries minimize the distorting risk of bias") (citation omitted).

18 5.9 Studies have likewise shown that "the racial composition of the jury can have a
19 measurable effect on public perceptions of the fairness of the criminal justice system." Leslie
20 Ellis & Shari Seidman Diamand, *Race, Diversity, and Jury Composition: Battering and*
21 *Bolstering Legitimacy*, 78 Chi.-Kent L. Rev. 1033, 1050 (2003). For example, "[w]hen the jury
22 was racially heterogeneous, [the] verdict did not influence ratings of the trial's fairness.
23 However, when the jury did not include minority members, observers viewed the trial as less
24 fair when it produced a guilty verdict than when it produced a not guilty verdict." *Id.* at 1049.

25 5.10 Studies have also shown "that income correlate[s] more strongly with juror
26 opinions about criminal justice than [does] any other characteristic except age. In other

1 words, income [is] a more important determinant of juror opinion than race, gender, or
2 occupation.” Mitchell S. Zuklie, *Rethinking the Fair Cross-Section Requirement*, 84 Cal. L. Rev.
3 101, 140 (1996). “Thus, exclusion of the poor from jury selection may eliminate valuable
4 perspectives about the criminal justice system from deliberations. Such a loss undercuts the
5 ability of juries to express accurately the judgment of the community, which is essential to the
6 protection of litigants in the criminal justice system.” *Id.*

7 5.11 “[I]nclusion and diversity [in jury venires] is highly beneficial, advancing fairness
8 and the appearance of fairness, and promoting more effective and reflective juries.”
9 *Saintcalle*, 178 Wn.2d at 101 (Gonzalez, J., concurring).

10 5.12 “[T]he jury drawn from a fair cross section of the community is better suited to
11 fulfill the jury’s function of serving as a democratic check on government functionaries who
12 run the criminal justice system.” Hiroshi Fukurai, *Race, Social Class, and Jury Participation:
13 New Dimensions for Evaluating Discrimination in Jury Service and Jury Selection*, 24 J. of Crim.
14 Just. 71, 72 (1996). “The judgment of the community, after debates among its various
15 subgroups and selection of a fair cross section of its members, is less likely to share, or be
16 controlled by, the prejudices of prosecutors or judges.” *Id.*

17 5.13 “When any large and identifiable segment of the community is excluded from
18 jury service, the effect is to remove from the jury room qualities of human nature and
19 varieties of human experience, the range of which is unknown and perhaps unknowable.”
20 *Peters v. Kiff*, 407 U.S. 493, 503 (1972). “It is not necessary to assume that the excluded group
21 will consistently vote as a class in order to conclude . . . that its exclusion deprives the jury of a
22 perspective on human events that may have unsuspected importance in any case that may be
23 presented.” *Id.* at 503-04.

24 **B. Washington citizens have a statutory right to participate equally in the jury system.**

25 5.14 “It is the policy of [Washington] that . . . all qualified citizens have the
26 opportunity . . . to be considered for jury service . . .” RCW 2.36.080(1); *see also* Wash.

1 Const. art. I, § 12 (“No law shall be passed granting to any citizen, class of citizens, or
2 corporation other than municipal, privileges or immunities which upon the same terms shall
3 not equally belong to all citizens, or corporations.”).

4 5.15 Citizens “shall not be excluded from jury service in this state on account of
5 race, color . . . or economic status.” RCW 2.36.080(3).

6 5.16 “Diversity in jury service increases the twin goals of recognizing that all citizens
7 have equal rights and responsibilities and making the jury system as fair as possible.” WSJC
8 Report at 3.

9 **C. King County operates the jury system in its district and superior courts.**

10 5.17 All King County residents who meet the following criteria are obligated by state
11 law to perform jury service in the courts of King County: (1) citizen of the United States; (2) 18
12 years of age or older; and (3) able to communicate in the English language. See
13 www.kingcounty.gov/courts/SuperiorCourt/Juror/FAQ.aspx (last visited July 10, 2016);
14 www.kingcounty.gov/courts/district-court/about/jury/Jury%20FAQ.aspx (last visited July 10,
15 2016).

16 5.18 King County selects individuals for jury service at random from a list of names
17 generated from voter registration, driver license, and “identocard” records. See
18 www.kingcounty.gov/courts/SuperiorCourt/Juror/FAQ.aspx (last visited July 10, 2016);
19 www.kingcounty.gov/courts/district-court/about/jury/Jury%20FAQ.aspx (last visited July 10,
20 2016).

21 5.19 There are nine King County District Court locations: Auburn, Bellevue,
22 Redmond, Issaquah, Shoreline, Seattle, Burien, Kent, and Vashon. See
23 www.kingcounty.gov/courts/district-court/about/jury/Jury%20FAQ.aspx (last visited July 10,
24 2016).

25 5.20 There are two King County Superior Court locations: Seattle and Kent. See
26 www.kingcounty.gov/courts/SuperiorCourt/Juror.aspx (last visited July 10, 2016).

1 5.21 An individual selected to perform jury service in the district courts of King
2 County may ask to reschedule or defer jury service only once. See
3 www.kingcounty.gov/courts/district-court/about/jury/Jury%20FAQ.aspx (last visited July 10,
4 2016).

5 5.22 An individual selected to perform jury service in the superior courts of King
6 County may ask to reschedule or defer jury service only one or two times. See
7 www.kingcounty.gov/courts/SuperiorCourt/Juror/FAQ.aspx (last visited July 10, 2016).

8 **D. King County employs the individuals who perform jury service in its courts.**

9 5.23 Individuals who perform jury service in the courts of King County are
10 involuntary workers and thus employees of King County.

11 5.24 King County supervises and controls the work schedules of individuals
12 performing jury service.

13 5.25 King County supervises and controls the conditions of employment of
14 individuals performing jury service.

15 5.26 King County supervises the work of individuals performing jury service.

16 5.27 King County has the power to dismiss or discharge individuals performing jury
17 service.

18 5.28 King County determines the rate and method of any payments (or lack thereof)
19 to individuals performing jury service.

20 5.29 King County maintains records regarding the work of individuals performing
21 jury service.

22 5.30 King County provides the premises and equipment necessary for individuals
23 performing jury service to perform their work.

24 5.31 The work of individuals performing jury service is not specialized.

25 5.32 The work of individuals performing jury service does not require special
26 knowledge or ability.

1 5.33 The work of individuals performing jury service provides no opportunity for
2 profit or loss.

3 5.34 The work of individuals performing jury service is an integral part of King
4 County's administration of its courts.

5 **E. King County fails to pay individuals for the time they spend performing jury service.**

6 5.35 King County has a systemic policy and practice of failing to compensate
7 individuals for time spent performing jury service.

8 5.36 Since 1959, King County has paid an individual who performs jury service only
9 (1) an "expense" payment of \$10 per day, and (2) a reimbursement payment for mileage or
10 travel fare. See www.kingcounty.gov/courts/SuperiorCourt/Juror/FAQ.aspx (last visited July
11 10, 2016); www.kingcounty.gov/courts/district-court/about/jury/Jury%20FAQ.aspx (last
12 visited July 10, 2016); see also RCW 2.36.150.

13 5.37 A minimum wage worker in Seattle currently earns up to \$104.00 in an eight-
14 hour day, and all minimum wage workers in Washington currently earn no less than \$75.76 in
15 an eight-hour day. See www.lni.wa.gov/workplacerrights/wages/minimum/ (last visited July
16 10, 2016); SMC 14.19.030.

17 **F. King County's failure to pay individuals for time performed jury service has a**
18 **disparate impact on people of low economic status and people of color.**

19 5.38 Research has long shown that "prospective jurors in lower social classes are
20 consistently underrepresented in most federal and state court jury pools and venires."
21 Fukurai, *supra*, at 85. Indeed, "the economic and occupational backgrounds of prospective
22 jurors exert greater influence [on jury participation] than jurors' ascriptive measures, such as
23 race/ethnicity and gender." *Id.* at 82-83. "Those with lower occupational status and lower
24 annual incomes are . . . significantly underrepresented, even more severely than African
25 Americans, Hispanics, or women as a whole." *Id.* at 82. And "minority jurors in lower social
26 class positions are found to be the most underrepresented group on jury panels." *Id.* at 83.

1 5.39 One study, for example, found that “while nearly 40% of the population live[d]
2 in households earning \$35,000 or less, only 13% of the people participating in jury service
3 [did].” Robert C. Walters, Michael D. Marin & Mark Curriden, *Jury of our Peers: An Unfulfilled*
4 *Constitutional Promise*, 58 SMU L. Rev. 319, 320 (2005). “The most common reason given for
5 why people skipped jury service was because they could not afford it.” *Id.* at 331. And in that
6 study, those impacted by this financial hardship were “disproportionately Hispanic.” *Id.* at
7 320, 350.

8 5.40 “[E]xcuses based on economic hardship significantly influence participation on
9 jury panels.” Fukurai, *supra*, at 83. Studies have shown “that the most important
10 determinant of whether jurors sought an excuse was their employer’s policy on continuing to
11 pay employees during jury service.” *Id.* “For many prospective jurors, the question of
12 whether their salaries will be continued during jury [service] becomes of paramount
13 importance.” *Id.*

14 5.41 “[P]rospective jurors with guaranteed salaries are more likely to serve on juries,
15 and those without financial compensation are more likely to request economic excuses and,
16 consequently, are weeded out of jury selection.” *Id.*

17 5.42 “So long as the poor and other underrepresented groups seek hardship
18 exemptions from . . . jury service in disproportionate numbers, juries will not reflect all the
19 relevant groups in the community that are critical to the legitimacy of the jury process.”
20 Zuklie, *supra*, at 150.

21 5.43 Such underrepresentation “prevents the idea of a democratic government from
22 becoming a reality.” *Saintcalte*, 178 Wn.2d at 41 (citation omitted); *see also Thiel v. S. Pac.*
23 *Co.*, 328 U.S. 217, 223 (1946) (holding low-wage workers “cannot be . . . systemically excluded
24 in whole or in part without doing violence to the democratic nature of the jury system”).

25 5.44 In King County, the annual household incomes of people of color are
26 substantially below those of white people. In 2013, for example, the median annual

1 household income in King County was \$36,150 for Black and African-American residents,
2 \$42,526 for American-Indian and Alaska-Native residents, and \$45,626 for Hispanic and Latino
3 residents. Francesca Murnan & Alice Park, *Understanding King County Racial Inequities: King*
4 *County Racial Disparity Data* 9 (King County United Way Nov. 2015). For white residents,
5 however, the median household income was more than \$75,000 per year. *Id.*

6 5.45 An even bigger disparity exists with respect to net wealth, “a crucial
7 determinate of economic stability.” *Id.* “Net wealth accounts for the total sum of
8 accumulated assets (money plus property/possessions that can be liquidated into money)
9 minus the sum of debt/financial obligation.” *Id.* “Assets enable families to survive set-backs
10 and build a strong economic base that supports future success.” *Id.* In 2013, the median
11 household net wealth for nonwhite and Hispanic residents was \$18,100, whereas the median
12 household net wealth for white residents was \$142,000. *Id.* at 10.

13 5.46 While income inequality disproportionately affects people of color, it has an
14 impact on all race classifications. In 2014, more than 46,000 households in King County had a
15 total income of less than \$10,000, and more than 140,000 households had a total income of
16 between \$10,000 and \$34,999. All of these households (and more) were in the bottom two
17 income quintiles as measured nationally by the United States Census Bureau. *See DeNavas-*
18 *Walt & Proctor, supra*, at 8.

19 5.47 A survey of more than 3,000 individuals who performed jury service in King
20 County in 2006 demonstrated that persons of color are significantly underrepresented in the
21 jury venire. *See The Jury and Democracy Project, 2006 Executive Summary for King County*
22 *Study Participants* 1 (available at <http://jurydemocracy.la.psu.edu/ExecSummary2006.pdf>).
23 For example, Black and African-American individuals constituted six percent of the population
24 in King County at that time but made up only three percent of the jury venire. *Id.* The
25 disparity was even larger for Hispanic individuals, who constituted seven percent of the
26 population in King County at that time but made up only two percent of jury venire. *Id.* White

1 individuals, by contrast, constituted 74 percent of the population in King County at that time
2 but made up 86 percent of the jury venire. *Id.*

3 5.48 The survey also strongly suggested that individuals of low economic status are
4 similarly underrepresented in the jury venire. For example, individuals with four-year college
5 degrees constituted 43 percent of the population in King County at that time but made up 63
6 percent of the jury venire. This indicates that the 57 percent of the population in King County
7 who did not have a four-year college degree (and who are likely to earn less money than those
8 with a degree) made up only 37 percent of the jury venire.

9 5.49 By systemically failing to compensate individuals who perform jury service, King
10 County has caused, and will continue cause, Plaintiff Rocha, Plaintiff Bednarczyk, and
11 members of the Economic Disparity Class to be excluded from participating in jury service on
12 account of their economic status.

13 5.50 By systemically failing to compensate individuals who perform jury service, King
14 County has caused, and will continue cause, Plaintiff Rocha and members of the Black and
15 African-American Racial Disparity Class to be excluded from participating in jury service on
16 account of their race or color.

17 5.51 By systemically failing to compensate individuals who perform jury service, King
18 County has caused, and will continue cause, Plaintiff Rocha and members of the Black and
19 African-American Racial Disparity Class to be discriminated against on account of their race or
20 color by preventing them from fully enjoying the rights, advantages, and privileges of jury
21 service.

22 **G. Adequate compensation is necessary to ensure equal participation in King County's**
23 **jury system.**

24 5.52 In 1999, the Washington State Jury Commission was formed to "conduct a
25 broad inquiry into the jury system and examine issues including juror responsiveness, citizen
26 satisfaction from jury service, adequacy of juror reimbursement, and improving juror
participation in trials." WSJC Report at iii.

1 5.53 After completing numerous surveys and studies, the Jury Commission found
2 “there remains in Washington ‘a perception that jury service has been reserved for certain
3 segments of our society,’ which ‘increases alienation of the excluded segments’”
4 *Saintcalle*, 178 Wn.2d at 100 (Gonzalez, J., concurring) (quoting WSJC Report at 3).

5 5.54 The Jury Commission “concluded that ‘special efforts should be made to
6 increase participation in jury service by sectors of society that traditionally have not
7 participated fully, particularly young people and minority communities.’” *Id.* (quoting WSJC
8 Report at 3).

9 5.55 The Jury Commission made numerous recommendations for achieving this and
10 other goals, but the “highest priority” was increasing compensation for jurors. WSJC Report at
11 iii, x, 23-24.

12 5.56 In no uncertain terms, the Jury Commission deemed it “unacceptable that this
13 state’s citizens are required to perform one of the most important civic duties at a rate that
14 does not remotely approach minimum wage.” *Id.* at 23.

15 5.57 Since 1959, individuals performing jury service in the courts of King County
16 have not received any compensation other than an expense payment of \$10 per day plus
17 mileage or travel fare. *Id.* at 23; *see also* RCW 2.36.150.

18 5.58 Adjusted for inflation, a \$10 expense payment in 1959 has “the same buying
19 power as \$82.56 today. Bureau of Labor Statistics of the United States Department of Labor,
20 CPI Inflation Calculator, available at [http://data.bls.gov/cgi-](http://data.bls.gov/cgi-bin/cpicalc.pl?cost1=10&year1=1959&year2=2016)
21 [bin/cpicalc.pl?cost1=10&year1=1959&year2=2016](http://data.bls.gov/cgi-bin/cpicalc.pl?cost1=10&year1=1959&year2=2016) (last visited July 10, 2016).

22 5.59 The Jury Commission concluded that “[i]ncreased fees will not only address the
23 current inequity in juror compensation, but will also contribute to more economically and
24 ethnically diverse juries by enabling a broader segment of the population to serve.” WSJC
25 Report at iii.

1 5.60 Numerous commentators agree. *See, e.g.,* Julia Bladin & Loretta Velaochaga
2 Klugger, *Seeking Fair Representation: Potential Barriers to the Representation of Hispanic*
3 *Populations in Jury Pools of the EDWA*, The State of the State for Washington Latinos, at 45
4 (Whitman College 2014) (“77 percent of Hispanic jurors indicate they are willing to serve on
5 juries if they are paid an hourly minimum wage”); Equal Justice Initiative, *Illegal Racial*
6 *Discrimination in Jury Selection: A Continuing Legacy*, at 49 (August 2010) (“Eliminating
7 economic barriers to jury service is absolutely critical to ensure that juries are representative
8 and fair.”); Ted Stellwag, *The Verdict on Juries*, 27-JUN Pa. Law. 15, 21 (2005) (quoting ABA
9 American Jury Project chair as stating, “the inadequacy of juror pay is probably the biggest
10 obstacle to jury service”); Harry F. Mooney, William Chen & Spencer J. Kraik, “*A Jury of Our*
11 *Peers*”: *Is that Right?*, 71 Def. Couns. J. 106, 112 (2004) (concluding jurisdictions must
12 “[e]nsure that jurors are adequately compensated for their service”); Evan R. Seamone, A
13 *Refreshing Jury COLA: Fulfilling the Duty to Compensate Jurors Adequately*, 5 N.Y.U. J. Legis. &
14 Pub. Pol’y 289, 295 (2002) (“low pay . . . is perhaps the greatest impediment to the attainment
15 of citizen participation on juries”).

16 **H. Impact of King County’s conduct on Plaintiffs.**

17 5.61 Plaintiff Ryan Rocha. Plaintiff Rocha works for an employer that does not pay
18 employees for time spent performing jury service. Plaintiff Rocha’s annual household income
19 is within the bottom two quintiles as measured by the United States Census Bureau. Plaintiff
20 Rocha would like very much to perform jury service in the courts of King County, but he
21 cannot afford to forgo the wages he would lose while doing so. Thus, if King County were to
22 summons Plaintiff Rocha and require him to perform jury service without adequately
23 compensating for his time, Plaintiff Rocha would have to request an exemption because of the
24 financial hardship.

25 5.62 Plaintiff Nicole Bednarczyk. In approximately October 2012, King County
26 Superior Court summoned Plaintiff Bednarczyk for jury service. At that time, Plaintiff

1 Bednarczyk worked as an hourly-paid employee at a café and also served as the primary
2 caregiver to her elderly grandmother. Plaintiff Bednarczyk's annual household income fell
3 within the bottom two quintiles as measured by the United States Census Bureau. The café at
4 which Ms. Bednarczyk worked did not provide compensation to hourly-paid employees
5 performing jury service. Although Plaintiff Bednarczyk was eager to serve as a juror, she
6 lacked the financial resources to forgo her hourly wages. As a result, Plaintiff Bednarczyk
7 requested in writing to be excused from jury service, and King County granted the request.
8 Today, Plaintiff Bednarczyk continues to work for an employer that does not pay employees
9 for time spent performing jury service. In addition, Plaintiff Bednarczyk's annual household
10 income continues to fall within the bottom two quintiles as measured by the United States
11 Census Bureau. Plaintiff Bednarczyk would like very much to perform jury service in the
12 courts of King County, but she cannot afford to forgo the wages she would lose while doing
13 so. Thus, if King County were to summons Plaintiff Bednarczyk and require her to perform
14 jury service without adequately compensating for her time, Plaintiff Bednarczyk would have to
15 request an exemption because of the financial hardship.

16 5.63 Plaintiff Catherine Selin. In the fall of 2015, Ms. Selin served as a juror in King
17 County Superior Court for approximately eleven days. During the time she performed jury
18 service, Ms. Selin was self-employed and did not receive any compensation for the time she
19 spent performing that service. Ms. Selin remains self-employed today and thus will not
20 receive any compensation from an employer if she performs jury service again in the courts of
21 King County.

22 **I. There is a continuing risk that King County will violate the rights of Plaintiffs.**

23 5.64 As a result of King County's conduct, particularly the failure to adequately
24 compensate individuals for time spent performing jury service, Plaintiffs face an imminent and
25 substantial risk of harm. Specifically, there is a substantial likelihood that King County will
26 summons Plaintiffs to perform jury service, but Plaintiffs will be excluded from such service on

1 account of economic status, race, or color; will be discriminated against on account of race or
2 color and prevented from fully enjoying the rights, advantages, and privileges of such service;
3 or will perform such service but will not be minimally compensated as required by law for
4 time spent doing so. King County has persisted for decades in continuing its wrongful course
5 of systemic conduct despite having actual or constructive knowledge of the fact that it is
6 violating the rights of thousands of residents.

7 **VI. FIRST CLAIM FOR RELIEF**

8 **(RCW 2.36.080—Exclusion from Jury Service on Account of Economic Status—** 9 **By Plaintiffs Rocha and Bednarczyk, Individually and on Behalf of the** 10 **Members of the Economic Disparity Class)**

11 6.1 Plaintiffs reallege and incorporate by reference each and every allegation set
12 forth in the preceding paragraphs.

13 6.2 RCW 2.36.080(3) provides that “[a] citizen shall not be excluded from jury
14 service in this state on account of . . . economic status.”

15 6.3 King County’s systemic policy and practice of failing to compensate individuals
16 who perform jury service has directly or indirectly resulted in, and will continue to result in,
17 citizens being excluded from jury service on account of economic status, including individuals
18 who fall within the bottom two household income quintiles as measured by the United States
19 Census Bureau and do not work for an employer that compensates employees for jury service.

20 6.4 Plaintiff Rocha, Plaintiff Bednarczyk, and members of the Economic Disparity
21 Class fall within the bottom two household income quintiles as measured by the United States
22 Census Bureau, are eligible to perform jury service in the courts of King County, and do not
23 work for an employer that compensates employees for jury service.

24 6.5 Plaintiff Rocha and Plaintiff Bednarczyk have a substantial, well-founded fear of
25 being excluded from jury service in the courts of King County on account of their economic
26 status. Indeed, Plaintiff Bednarczyk, like many members of the Economic Disparity Class, has

1 already been excluded from jury service in the courts of King County on account of her
2 economic status.

3 6.6 The real and substantial injuries that Plaintiff Rocha and Plaintiff Bednarczyk
4 face are a result of King County's systemic policy and practice of failing to compensate
5 individuals for time spent performing jury service.

6 6.7 Plaintiff Rocha, Plaintiff Bednarczyk, and the members of the Economic
7 Disparity Class are within the class for whose especial benefit RCW 2.36.080(3) was enacted.

8 6.8 Legislative intent supports creating a remedy for violations of RCW 2.36.080(3).

9 6.9 Implying a remedy is consistent with the underlying purpose of RCW
10 2.36.080(3).

11 6.10 Unless enjoined by the Court, King County will continue to violate the right of
12 Plaintiff Rocha, Plaintiff Bednarczyk, and members of the Economic Disparity Class to have the
13 opportunity to perform jury service without exclusion on account of economic status.

14 6.11 As a result of King County's unlawful actions, Plaintiff Rocha, Plaintiff
15 Bednarczyk, and members of the Economic Disparity Class are entitled to declaratory and
16 injunctive relief.

17 **VII. SECOND CLAIM FOR RELIEF**

18 **(RCW 7.24.020—Declaration of Entitlement to Opportunity to Perform** 19 **Jury Service without Regard to Economic Status—By Plaintiffs Rocha** 20 **and Bednarczyk, Individually and on Behalf of the Members of the** **Economic Disparity Class)**

21 7.1 Plaintiffs reallege and incorporate by reference each and every allegation set
22 forth in the preceding paragraphs.

23 7.2 "Courts of record within their respective jurisdictions shall have power to
24 declare rights, status and other legal relations whether or not further relief is or could be
25 claimed. An action or proceeding shall not be open to objection on the ground that a
26 declaratory judgment or decree is prayed for. The declaration may be either affirmative or

1 negative in form and effect; and such declarations shall have the force and effect of a final
2 judgment or decree.” RCW 7.24.010.

3 7.3 “A person . . . whose rights, status or other legal relations are affected by a
4 statute [or] municipal ordinance . . . may have determined any question of construction or
5 validity arising under the . . . statute [or] ordinance . . . and obtain a declaration of rights,
6 status or other legal relations thereunder.” RCW 7.24.020 (commas omitted).

7 7.4 “Further relief based on a declaratory judgment or decree may be granted
8 whenever necessary or proper.” RCW 7.24.080.

9 7.5 RCW 2.36.080(3) provides that “[a] citizen shall not be excluded from jury
10 service in this state on account of . . . economic status.”

11 7.6 King County’s systemic policy and practice of failing to compensate individuals
12 who perform jury service has directly or indirectly resulted in, and will continue to result in,
13 citizens being excluded from jury service on account of economic status, including individuals
14 who fall within the bottom two household income quintiles as measured by the United States
15 Census Bureau and do not work for an employer that compensates employees for jury service.

16 7.7 Plaintiff Rocha, Plaintiff Bednarczyk, and members of the Economic Disparity
17 Class fall within the bottom two household income quintiles as measured by the United States
18 Census Bureau, are eligible to perform jury service in the courts of King County, and do not
19 work for an employer that compensates employees for jury service.

20 7.8 Plaintiff Rocha and Plaintiff Bednarczyk have a substantial, well-founded fear of
21 being excluded from jury service in the courts of King County on account of their economic
22 status. Indeed, Plaintiff Bednarczyk, like many members of the Economic Disparity Class, has
23 already been excluded from jury service in the courts of King County on account of her
24 economic status.

1 7.9 The real and substantial injuries that Plaintiff Rocha and Plaintiff Bednarczyk
2 face are a result of King County’s systemic policy and practice of failing to compensate
3 individuals for time spent performing jury service.

4 7.10 The rights of Plaintiff Rocha, Plaintiff Bednarczyk, and members of the
5 Economic Disparity Class to have the opportunity to perform jury service without regard to
6 economic status is affected by RCW 2.36.080(3). Thus, Plaintiff Rocha, Plaintiff Bednarczyk,
7 and members of the Economic Disparity Class are entitled to have the Court determine any
8 question of construction or validity arising under that statute.

9 7.11 Plaintiff Rocha, Plaintiff Bednarczyk, and members of the Economic Disparity
10 Class are entitled to declaratory and injunctive relief.

11 **VIII. THIRD CLAIM FOR RELIEF**

12 **(RCW 2.36.080—Exclusion from Jury Service on Account of Race or Color—By** 13 **Plaintiff Rocha, Individually and on Behalf of the Members of the Black and** 14 **African-American Racial Disparity Class)**

15 8.1 Plaintiffs reallege and incorporate by reference each and every allegation set
16 forth in the preceding paragraphs.

17 8.2 RCW 2.36.080(3) provides that “[a] citizen shall not be excluded from jury
18 service in this state on account of race” or “color.”

19 8.3 King County’s systemic policy and practice of failing to compensate individuals
20 who perform jury service has directly or indirectly resulted in, and will continue to result in,
21 citizens being excluded from jury service on account of race or color, including individuals who
22 are Black or African-American and do not work for an employer that compensates employees
23 for jury service.

24 8.4 Plaintiff Rocha and members of the Black and African-American Racial Disparity
25 Class are Black or African-American, are eligible to perform jury service in the courts of King
26 County, and do not work for an employer that compensates employees for jury service.

1 8.5 Plaintiff Rocha has a substantial, well-founded fear of being excluded from jury
2 service in the courts of King County on account of his race or color.

3 8.6 The real and substantial injuries that Plaintiff Rocha faces are a result of King
4 County's systemic policy and practice of failing to compensate individuals for time spent
5 performing jury service.

6 8.7 Plaintiff Rocha and the members of the Black and African-American Racial
7 Disparity Class are within the class for whose especial benefit RCW 2.36.080(3) was enacted.

8 8.8 Legislative intent supports creating a remedy for violations of RCW 2.36.080(3).

9 8.9 Implying a remedy is consistent with the underlying purpose of RCW
10 2.36.080(3).

11 8.10 Unless enjoined by the Court, King County will continue to violate the right of
12 Plaintiff Rocha and members of the Black and African-American Racial Disparity Class to have
13 the opportunity to perform jury service without exclusion on account of race or color.

14 8.11 As a result of King County's unlawful actions, Plaintiff Rocha and members of
15 the Black and African-American Racial Disparity Class are entitled to declaratory and injunctive
16 relief.

17 IX. FOURTH CLAIM FOR RELIEF

18 (RCW 7.24.020—Declaration of Entitlement to Opportunity to Perform 19 Jury Service without Regard to Race or Color—By Plaintiff Rocha, 20 Individually and on Behalf of the Members of the Black and African- 21 American Racial Disparity Class)

22 9.1 Plaintiffs reallege and incorporate by reference each and every allegation set
23 forth in the preceding paragraphs.

24 9.2 "Courts of record within their respective jurisdictions shall have power to
25 declare rights, status and other legal relations whether or not further relief is or could be
26 claimed. An action or proceeding shall not be open to objection on the ground that a
declaratory judgment or decree is prayed for. The declaration may be either affirmative or

1 negative in form and effect; and such declarations shall have the force and effect of a final
2 judgment or decree.” RCW 7.24.010.

3 9.3 “A person . . . whose rights, status or other legal relations are affected by a
4 statute [or] municipal ordinance . . . may have determined any question of construction or
5 validity arising under the . . . statute [or] ordinance . . . and obtain a declaration of rights,
6 status or other legal relations thereunder.” RCW 7.24.020 (commas omitted).

7 9.4 “Further relief based on a declaratory judgment or decree may be granted
8 whenever necessary or proper.” RCW 7.24.080.

9 9.5 RCW 2.36.080(3) provides that “[a] citizen shall not be excluded from jury
10 service in this state on account of race” or “color.”

11 9.6 King County’s systemic policy and practice of failing to compensate individuals
12 who perform jury service has directly or indirectly resulted in, and will continue to result in,
13 citizens being excluded from jury service on account of race or color, including individuals who
14 are Black or African-American and do not work for an employer that compensates employees
15 for jury service.

16 9.7 Plaintiff Rocha and members of the Black and African-American Racial Disparity
17 Class fall within the bottom two household income quintiles as measured by the United States
18 Census Bureau, are eligible to perform jury service in the courts of King County, and do not
19 work for an employer that compensates employees for jury service.

20 9.8 Plaintiff Rocha has a substantial, well-founded fear of being excluded from jury
21 service in the courts of King County on account of his economic status.

22 9.9 The real and substantial injuries that Plaintiff Rocha faces are a result of King
23 County’s systemic policy and practice of failing to compensate individuals for time spent
24 performing jury service.

25 9.10 The right of Plaintiff Rocha and members of the Black and African-American
26 Racial Disparity Class to have the opportunity to perform jury service without exclusion on

1 account of race or color is affected by RCW 2.36.080(3). Thus, Plaintiff Rocha and members of
2 the Black and African-American Racial Disparity Class are entitled to have the Court determine
3 any question of construction or validity arising under that statute.

4 9.11 Plaintiff Rocha and members of the Black and African-American Racial Disparity
5 Class are entitled to declaratory and injunctive relief.

6 **X. FIFTH CLAIM FOR RELIEF**

7 **(RCW 49.60.030—Race Discrimination that Prevents Full Enjoyment of Privileges of Public 8 Accommodation—By Plaintiff Rocha, Individually and on Behalf of the Members of the 9 Black and African-American Racial Disparity Class)**

10 10.1 Plaintiffs reallege and incorporate by reference each and every allegation set
11 forth in the preceding paragraphs.

12 10.2 The legislature has declared that discrimination on account of race or color
13 “threatens not only the rights and proper privileges of [Washington’s] inhabitants but [also]
14 menaces the institutions and foundation of a free democratic state.” RCW 49.60.010.

15 10.3 “The right to be free from discrimination because of race” or “color . . . is
16 recognized as and declared to be a civil right.” RCW 49.60.030(1).

17 10.4 The right to be free from discrimination includes “[t]he right to the full
18 enjoyment of any of the accommodations, advantages, facilities, or privileges of any place of
19 public resort, accommodation, assemblage, or amusement.” RCW 49.60.030(1)(b).

20 10.5 The phrase “[a]ny place of public resort, accommodation, assemblage, or
21 amusement” includes but is not limited to “any place . . . where the public gathers,
22 congregates, or assembles for amusement, recreation, or public purposes . . .” RCW
23 49.60.040(2).

24 10.6 The phrase “[f]ull enjoyment of” includes but is not limited to “admission of
25 any person to accommodations, advantages, facilities, or privileges of any place of public
26 resort, accommodation, assemblage, or amusement, without acts directly or indirectly causing

1 persons of any particular race” or “color . . . to be treated as not welcome, accepted, desired,
2 or solicited.” RCW 49.60.040(14).

3 10.7 The courts of King County are places of public accommodation and assemblage,
4 and jury service is a right, advantage, and privilege.

5 10.8 King County’s systemic policy and practice of failing to compensate individuals
6 who perform jury service has directly or indirectly resulted in, and will continue to result in,
7 discrimination against persons who are Black or African-American and do not work for an
8 employer that compensates employees for jury service. Specifically, King County has
9 prevented, and will continue to prevent, these individuals from fully enjoying the rights,
10 advantages, and privileges of performing jury service in the courts of King County.

11 10.9 Plaintiff Rocha and members of the Black and African-American Racial Disparity
12 Class are Black or African-American, are eligible to perform jury service in the courts of King
13 County, and do not work for an employer that compensates employees for jury service.

14 10.10 Plaintiff Rocha has a substantial, well-founded fear of being excluded from jury
15 service in the courts of King County, and thus discriminated against, on account of his race or
16 color.

17 10.11 The real and substantial injuries that Plaintiff Rocha faces are a result of King
18 County’s systemic policy and practice of failing to compensate individuals for time spent
19 performing jury service.

20 10.12 Unless enjoined by the Court, King County will continue to violate the right of
21 Plaintiff Rocha and members of the Black and African-American Racial Disparity Class to be
22 free from discrimination.

23 10.13 As a result of King County’s unlawful actions, Plaintiff Rocha and members of
24 the Black and African-American Racial Disparity Class are entitled to declaratory and injunctive
25 relief.
26

1 10.14 Under RCW 49.60.030(2), Plaintiff Rocha is also entitled to recover attorneys'
2 fees and costs.

3 **XI. SIXTH CLAIM FOR RELIEF**

4 **(RCW 7.24.020—Declaration of Entitlement to Minimum Wage for Jury**
5 **Service—By Plaintiffs Rocha, Bednarczyk, and Selin, Individually and on**
6 **Behalf of the Members of the Future Service Class)**

7 11.1 Plaintiffs reallege and incorporate by reference each and every allegation set
8 forth in the preceding paragraphs.

9 11.2 “Courts of record within their respective jurisdictions shall have power to
10 declare rights, status and other legal relations whether or not further relief is or could be
11 claimed. An action or proceeding shall not be open to objection on the ground that a
12 declaratory judgment or decree is prayed for. The declaration may be either affirmative or
13 negative in form and effect; and such declarations shall have the force and effect of a final
14 judgment or decree.” RCW 7.24.010.

15 11.3 “A person . . . whose rights, status or other legal relations are affected by a
16 statute [or] municipal ordinance . . . may have determined any question of construction or
17 validity arising under the . . . statute [or] ordinance . . . and obtain a declaration of rights,
18 status or other legal relations thereunder.” RCW 7.24.020 (commas omitted).

19 11.4 “Further relief based on a declaratory judgment or decree may be granted
20 whenever necessary or proper.” RCW 7.24.080.

21 11.5 Under the MWA, employers currently must pay Washington employees no less
22 than \$9.47 for each hour worked. See RCW 49.46.020;
23 www.lni.wa.gov/workplacerrights/wages/minimum/ (last visited July 10, 2016).

24 11.6 Under the SMC, employers with more than 500 employees in the United States
25 currently must pay employees who work in Seattle no less than \$13.00 for each hour of work.
26 See SMC 14.19.030; SMC 14.19.020; SMC 14.19.010.

1 11.7 “[S]tate law sets the minimum wage in any given location at the most favorable
2 level to the employee whether by federal, state, or local law.” *Filo Foods, LLC v. City of*
3 *SeaTac*, 183 Wn.2d 770, 792, 357 P.3d 1040 (2015) (citing RCW 49.46.120).

4 11.8 “Employer” is defined under both the MWA and the SMC to include any
5 individual or person acting directly or indirectly in the interest of an employer in relation to an
6 employee. RCW 49.46.010(4); SMC 14.19.010.

7 11.9 “Employee” is defined under both the MWA and the SMC to include any
8 individual employed by an employer unless specifically exempted under the statute. RCW
9 49.46.010(3); SMC 14.19.010 (citing to SMC 12A.28.200).

10 11.10 “Employ” is defined under both the MWA and the SMC to mean to permit to
11 work. RCW 49.46.010(2); SMC 14.19.010.

12 11.11 The MWA is liberally construed and any exemptions are narrowly confined.
13 Jury service is not within the MWA’s list of exempt categories of employment. *See* RCW
14 49.46.010(3).

15 11.12 The SMC is liberally construed and any exemptions are narrowly confined. Jury
16 service is not within the SMC’s list of exempt categories of employment. SMC 14.19.010
17 (citing to SMC 12A.28.200).

18 11.13 The Washington Supreme Court has held that individuals who perform jury
19 service “are employees of the county” in which they serve. *Bolin v. Kitsap County*, 114 Wn.2d
20 70, 75, 785 P.2d 805 (1990).

21 11.14 Plaintiff Rocha, Plaintiff Bednarczyk, Plaintiff Selin, and the members of the
22 Future Service Class are eligible to perform jury service in the courts of King County and do
23 not work for an employer that compensates employees for jury service.

24 11.15 Plaintiff Rocha, Plaintiff Bednarczyk, and Plaintiff Selin have a substantial, well-
25 founded fear of being summoned to perform jury service in the courts of King County, which
26 does not compensate jurors at the minimum wage rate required under either the MWA or the

SMC. Indeed, Plaintiff Rocha, Plaintiff Bednarczyk, and Plaintiff Selin—like other members of the Future Service Class—have already been summoned to perform jury service in the courts of King County.

11.16 The real and substantial injuries that Plaintiff Rocha, Plaintiff Bednarczyk, and Plaintiff Selin face are a result of King County’s systemic policy and practice of failing to compensate individuals for time spent performing jury service.

11.17 The rights of Plaintiff Rocha, Plaintiff Bednarczyk, Plaintiff Selin, and members of the Future Service Class to minimum compensation for time spent performing jury service are affected by the MWA and the SMC. Thus, Plaintiff Rocha, Plaintiff Bednarczyk, Plaintiff Selin, and members of the Future Service Class are entitled to have the Court determine any question of construction or validity arising under the MWA and the SMC.

11.18 Plaintiff Rocha, Plaintiff Bednarczyk, Plaintiff Selin, and members of the Future Service Class are entitled to declaratory and injunctive relief.

11.19 Under RCW 49.46.090 and RCW 49.48.030, Plaintiff Rocha, Plaintiff Bednarczyk, and Plaintiff Selin are entitled to recover attorneys’ fees and costs.

XII. SEVENTH CLAIM FOR RELIEF

(RCW 49.46.090—Unpaid Minimum Wages for Jury Service—By Plaintiff Selin, Individually and on Behalf of the Members of the Past Service Class)

12.1 Plaintiffs reallege and incorporate by reference each and every allegation set forth in the preceding paragraphs.

12.2 Under RCW 49.46.090, employers must pay employees no less than the applicable minimum wage rate for all hours worked. If an employer fails to do so, RCW 49.46.090 requires that the employer pay the employees the full amount of the applicable minimum wage rate less any wage compensation actually paid to the employees.

12.3 Employers in Washington must pay employees no less than the minimum wage rate established by the MWA for each hour worked. RCW 49.46.020.

1 12.4 Since April 1, 2015, employers with more than 500 employees in the United
2 States have been obligated to pay employees who work in Seattle a minimum wage rate per
3 hour that is more favorable than the minimum hourly rate under RCW 49.46.020. *See* SMC
4 14.19.030; SMC 14.19.020; SMC 14.19.010.

5 12.5 “[S]tate law sets the minimum wage in any given location at the most favorable
6 level to the employee whether by federal, state, or local law.” *Filo Foods*, 183 Wn.2d at 792
7 (citing RCW 49.46.120).

8 12.6 “Employer” is defined to include “any individual . . . [or] person . . . acting
9 directly or indirectly in the interest of an employer in relation to an employee.” RCW
10 49.46.010(4).

11 12.7 “Employee” is defined to include “any individual employed by an employer”
12 unless specifically exempted under the statute. RCW 49.46.010(3).

13 12.8 “‘Employ’ includes to permit to work.” RCW 49.46.010(2).

14 12.9 The MWA is construed liberally and any exemptions are narrowly confined.
15 Jury service is not within the MWA’s list of exempt categories of employment. *See* RCW
16 49.46.010(3).

17 12.10 The Washington Supreme Court has held that individuals who perform jury
18 service “are employees of the county” in which they serve. *Bolin*, 114 Wn.2d at 75.

19 12.11 Plaintiff Selin and the members of the Past Service Class performed jury service
20 in the courts of King County and thus were employees of King County during their time of
21 service.

22 12.12 King County failed to pay Plaintiff Selin and the members of the Past Service
23 Class for the time they spent performing jury service.

24 12.13 By the actions alleged above, King County violated the provisions of the MWA.
25
26

12.14 As a result of the unlawful acts of King County, Plaintiff Selin and the members of the Past Service Class have been deprived of compensation in amounts to be determined at trial.

12.15 Under RCW 49.46.090, Plaintiff Selin and the members of the Past Service Class are entitled to recover such amounts, including interest thereon, and attorneys' fees and costs.

XIII. EIGHTH CLAIM FOR RELIEF

(RCW 49.48.010—Unpaid Wages for Jury Service—By Plaintiff Selin, Individually and on Behalf of the Members of the Past Service Class)

13.1 Plaintiffs reallege and incorporate by reference each and every allegation set forth in the preceding paragraphs.

13.2 RCW 49.48.010 provides that “when any employee shall cease to work for an employer whether by discharge or by voluntary withdrawal, the wages due him on account of his employment shall be paid to him at the end of the established pay period.” The statute further states that it shall be unlawful for “any employer to withhold or divert any portion of an employee’s wages.”

13.3 Since at least August 8, 2013, King County has been required to pay the minimum wage rate in effect under RCW 49.46.020 to individuals who perform jury service.

13.4 Since April 1, 2015, King County has been required to pay the minimum wage rate in effect for Schedule 1 employers under SMC 14.19.020 to individuals who perform jury service in Seattle.

13.5 King County failed to pay Plaintiff Selin and the members of the Past Service Class for the time they spent performing jury service.

13.6 By the actions alleged above, King County violated the provisions of RCW 49.48.010.

13.7 As a result of the unlawful acts of King County, Plaintiff Selin and the members of the Past Service Class have been deprived of compensation in amounts to be determined at trial.

13.8 Under RCW 49.48.030, Plaintiff Selin and the members of the Past Service Class are entitled to recover such amounts, including interest thereon, and attorneys' fees and costs.

XIV. NINTH CLAIM FOR RELIEF

(RCW 49.52.070—Willful Failure to Pay Wages for Jury Service—By Plaintiff Selin, Individually and on Behalf of the Members of the Past Service Class)

14.1 Plaintiffs reallege and incorporate by reference each and every allegation set forth in the preceding paragraphs.

14.2 Under RCW 49.52.050(2), it is unlawful when an employer, “[w]ilfully and with intent to deprive the employee of any part of his wages, pays any employee a lower wage than the wage such employer is obligated to pay such employee by any statute, ordinance, or contract.”

14.3 RCW 49.52.070 provides that any employer who violates the foregoing provision shall be liable in a civil action for twice the amount of wages withheld, together with the costs of suit and reasonable attorney fees.

14.4 Since at least August 8, 2013, King County has been required to pay the minimum wage rate in effect under RCW 49.46.020 to individuals who perform jury service.

14.5 Since April 1, 2015, King County has been required to pay the minimum wage rate in effect for Schedule 1 employers under SMC 14.19.020 to individuals who perform jury service in Seattle.

14.6 King County failed to pay Plaintiff Selin and the members of the Past Service Class for the time they spent performing jury service.

14.7 The alleged unlawful acts of King County against Plaintiff Selin and the members of the Past Service Class, as set forth above, were committed willfully and with

1 intent to deprive Plaintiff Selin and the Past Service Class members of the wages to which they
2 were entitled.

3 14.8 As a result of the unlawful acts of King County, Plaintiff Selin and the members
4 of the Past Service Class have been deprived of compensation in amounts to be determined at
5 trial.

6 14.9 Under RCW 49.52.070, Plaintiff Selin and the members of the Past Service Class
7 are entitled to recover such amounts, including interest thereon, and attorneys' fees and
8 costs.

9 **XV. PRAYER FOR RELIEF**

10 WHEREFORE, Plaintiffs, on their own behalf and on behalf of the members of the
11 Classes, pray for judgment against King County as follows:

- 12 A. Certify each of the proposed Classes;
- 13 B. Appoint Plaintiffs Rocha and Bednarczyk as representatives of the Economic
14 Disparity Class;
- 15 C. Appoint Plaintiff Rocha as representative of the Black and African-American
16 Racial Disparity Class;
- 17 D. Appoint Plaintiffs Rocha, Bednarczyk, and Selin as representatives of the Future
18 Service Class;
- 19 E. Appoint Plaintiff Selin as representative of the Past Service Class;
- 20 F. Appoint the undersigned attorneys as counsel for the Classes;
- 21 G. Declare that by failing to compensate individuals for time spent performing jury
22 service, King County is causing and, absent injunctive relief, will continue to
23 cause members of the Economic Disparity Class to be excluded from jury
24 service on account of economic status;
- 25 H. Declare that by failing to compensate individuals for time spent performing jury
26 service, King County is causing and, absent injunctive relief, will continue to

1 cause members of the Black and African-American Racial Disparity Class to be
2 excluded from jury service on account of race or color;

3 I. Declare that by failing to compensate individuals for time spent performing jury
4 service, King County is discriminating against and, absent injunctive relief, will
5 continue to discriminate against members of the Black and African-American
6 Racial Disparity Class by preventing those members from fully enjoying the
7 rights, advantages, and privileges of performing jury service;

8 J. Declare that by failing to compensate individuals for time spent performing jury
9 service, King County is violating and, absent injunctive relief, will continue to
10 violate the provisions of the MWA with respect members of the Future Service
11 Class;

12 K. Issue preliminary and permanent injunctions requiring King County to
13 adequately compensate individuals who perform jury service in the courts of
14 King County and are not otherwise compensated for that service by an
15 employer;

16 L. Issue preliminary and permanent injunctions requiring King County to pay the
17 applicable minimum wage rate to individuals who perform jury service in the
18 courts of King County and are not otherwise compensated for that service by
19 an employer;

20 M. Award compensatory and exemplary damages to Plaintiff Selin and members of
21 the Past Service Class;

22 N. Award attorneys' fees and costs to Plaintiffs' attorneys, as allowed by law;

23 O. Award pre-judgment and post-judgment interest to Plaintiff Selin and members
24 of the Past Service Class, as provided by law; and

25 P. Grant such other and further relief as this Court deems necessary.
26

XVI. DEMAND FOR JURY TRIAL

Plaintiffs, on behalf of themselves and the Classes, respectfully request trial by jury on all claims so triable.

RESPECTFULLY SUBMITTED AND DATED this 8th day of August, 2016.

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